

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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DAMEN MONTGOMERY

Plaintiff,

-against-

Index No.: _____

SUMMONS

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
NEW YORK CITY POLICE OFFICER IMRAN ZAHOOOR
NEW YORK CITY POLICE OFFICER "JOHN DOE",

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED: to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve Notice of Appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
July 1, 2014

LAW OFFICES OF LONNIE HART JR., P.C.
Attorney(s) for the Plaintiff
26 Court Street, Suite 714
Brooklyn, New York 11242
(718) 246-8200

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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DAMEN MONTGOMERY

Plaintiff,

-against-

Index No.: _____

COMPLAINT

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
NEW YORK CITY POLICE OFFICER IMRAN ZAHOOR
and NEW YORK CITY POLICE OFFICER "JOHN DOE",

Defendants.

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- 1) Plaintiffs, DAMEN MONTGOMERY, by his attorney, LONNIE HART, JR.,
complaining of the Defendants, respectfully shows and alleges as follows:
- 2) That at all times mentioned herein, the Plaintiffs, DAMEN MONTGOMERY (hereinafter PLAINTIFF) were and still are residents of Queens County, City and State of New York.
- 3) That at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK,
(hereinafter CITY) was and still is a municipal corporation duly organized and existing under the laws of the State of New York.
- 4) That at all times hereinafter mentioned, the Defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter NYPD) was and still is an agency of the CITY responsible for law enforcement.
- 5) Upon information and belief, at all times relevant to this complaint the individual Defendant NEW YORK CITY POLICE OFFICER IMRAN ZAHOOR, (hereinafter P.O. ZAHOOR) was and still is a New York City police officer employed by the Defendants NYPD and CITY OF NEW YORK.

6) Upon information and belief, at all times relevant to this complaint the individual Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE” (hereinafter P.O. “JD”) was and still is a New York City police officer employed by the Defendants NYPD and CITY OF NEW YORK

7) That the plaintiff sues the individual Defendant(s) in their official capacities and at all times hereinafter mentioned, the individual Defendant(s) were acting within the course of their employment and/or official policy, practice, custom or usage of the Defendants NYPD, and THE CITY OF NEW YORK and under color of State law, that is, under color of Constitution, Statutes, laws, ordinances, rules, regulations, of the United States, City and State of New York.

8) That Notice of Claim to sue, as required by Section § 50 (e) of the General Municipal Law of the State of New York, was served by the plaintiff upon the Defendant, CITY OF NEW YORK, on or about September 18, 2013, that at least thirty (30) days have elapsed since the demand or claim upon which this action is predicted was presented to the CITY OF NEW YORK for adjustment and that it has neglected and/or refused to make adjustment or payment thereof, and that this action is commenced within three years after the cause of action accrued.

STATEMENT OF FACTS

9) On or about April 27, 2013, at approximately 12:00a.m. In the vicinity of West 125th Street New York County New York, DAMEN MONTGOMERY were falsely arrested and falsely imprisoned by members of the New York City Police Department.

10) On the above date and location, members of the New York City Police Department charged DAMEN MONTGOMERY with Obstructing Governmental Administration and Resisting Arrest, both Class “A” misdemeanors.

- 11) DAMEN MONTGOMERY was accused and arrested for crimes he did not commit by P.O. ZAHOR and P.O. DOE without probable cause or reasonable suspicion that he had committed any crime.
- 12) DAMEN MONTGOMERY was forcibly thrown to the ground and kned in the back by the police, searched without consent and handcuffed in the street. As a result of the physical assault by the police, plaintiff suffered injury to his shoulder (rotator cuff) and wrists.
- 13) DAMEN MONTGOMERY was arrested and taken to the 28th precinct in Manhattan for fingerprinting and processing. Plaintiff's vehicle was also seized by the defendants.
- 14) DAMEN MONTGOMERY was held in custody for approximately 24 hours and arraigned later the same day. Plaintiff was released on his own recognizance.
- 15) After his release from jail, DAMEN MONTGOMERY sought to retrieve his vehicle and discovered that the instrument panel underneath the steering wheel had been severely damaged.
- 16) As a result of the unlawful arrest, DAMEN MONTGOMERY lost his job as a security guard at Columbia University, a position he had held for five years. Plaintiff has not worked since the unlawful arrest.
- 17) On or about March 31, 2014, the criminal charges against DAMEN MONTGOMERY were dismissed and sealed.

AS AND FOR A FIRST CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK

- 18) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs "1" through "17" of the complaint with the same force and effect as if fully set forth herein.

19) That as the employer of the individual Defendants, **P.O. ZAHOOR** and **P.O. “JD”** at the times of their negligent conduct as set forth herein, the Defendant, **CITY OF NEW YORK**, is liable to the Plaintiff under the laws of the City and State of New York, for allowing said defendant to act under color of law.

20) That as a proximate result of the aforesaid acts and omissions by the Defendant **CITY** in hiring, training and employing the individual defendants, the Plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments of the United States Constitution, Sections § 1983 and § 1988 of Title 42 of the United States Code, and under the laws of the City, and State of New York. The Plaintiff has suffered general and pecuniary damages.

AS FOR A SECOND CAUSE OF ACTION
AGAINST THE NEW YORK CITY POLICE DEPARTMENT

21) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “**1**” through “**20**” of the complaint with the same force and effect as if fully set forth herein.

22) That the Defendant, NYPD, was negligent in the hiring, supervision, training and instruction of the individual Defendants, P.O. ZAHOOR and P.O. “JD”.

23) That as a direct and proximate result of the deliberate indifference, carelessness, and/or recklessness of the Defendant, NYPD, with regard to the proper training and supervision of its officers/employees, the Plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments of the United States Constitution, Sections § 1983 and § 1988 of Title 42 of the United States Code, and under the laws of the City, and State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, AND INDIVIDUAL DEFENDANTS, P.O. ZAHOR AND P.O. "JD"
"CIVIL RIGHTS VIOLATION"

24) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs "1" through "23" of the complaint with the same force and effect as if fully set forth herein.

25) That the actions of defendants heretofore described resulting from the April 27, 2013, assault, battery, arrest, detention and confinement deprived Plaintiff of rights, privileges and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the CITY'S agents, servants and/or employees and those involving the arrest, detention and prosecution of individuals, including and especially, those persons such as the Plaintiff who are of Hispanic ethnic descent.

26) That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of excessive force and acts of misconduct against civilians, and especially those civilians who are of Hispanic descent, and subsequent attempts to conceal such action by failing to adequately train, supervise and discipline its agents, employees and offices.

27) That the Defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and especially those civilian who are of Hispanic descent, and established a custom policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD and subsequent attempts to conceal such actions

by failing to adequately train, supervise, and discipline its agent, employees and offices.

28) The Defendants have deprived Plaintiff of his liberty in violation of his civil and constitutional rights set forth in the United States Constitution, 42 U.S.C. § 1983 and the Constitution of the State of New York.

29) The Defendants actions were undertaken under the color of law and would not have existed but for said Defendants' use of their official power.

30) That the Defendants conspired with each other and acted in concert to discriminate against and deprive the Plaintiff of his Constitutional and Civil Rights.

31) The supervisors and policy making officers of defendant CITY and its NYPD defendants P.O. ZAHOOOR and P.O. "JD", as a matter of policy, are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

32) The Defendant CITY has failed to properly and effectively train its agents, servants and/or employees, including defendants P.O. ZAHOOOR and P.O."JD" with regard to the proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

33) The Defendant CITY has sanctioned the policy and practices heretofore described through its deliberate indifference to the effect of such policy and practices upon the constitutional rights of the Plaintiff and others similarly situated.

34) That the Defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

35) By reason of the foregoing, the Plaintiff has been damaged and suffered serious and severe permanent physical injuries, emotional distress and emotional harm as a result of these deprivations of constitutional and civil rights.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
“FALSE ARREST”

36) That the plaintiff repeats and re-alleges the allegations contained in paragraphs “1” through “35” of the complaint with the same force and effect as if fully set forth herein.

37) That the aforesaid actions of the individual Defendants constitute false arrest and/or imprisonment of the Plaintiffs in violation of the Constitution and laws of the City and State of New York, and United State of America.

38) That the Defendants P.O. ZAHOR and P.O. “JD” recklessly, wrongfully, maliciously and without probable cause physically detained plaintiff DAMEN MONTGOMERY and placed him under arrest.

39) That as a result of the false arrest plaintiff DAMEN MONTGOMERY was handcuffed and incarcerated for approximately 24 hours.

40) That as a proximate result of the aforesaid acts and omissions by the Defendants, the Plaintiff has suffered general, pecuniary and compensatory damages.

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
“FALSE IMPRISONMENT”

41) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “1” through “40” of the complaint with the same force and effect as if fully set forth herein.

42) Defendants P.O. ZAHOOOR and P.O. “J D” showed utter disregard to the truth and falsely brought criminal charges against plaintiff DAMEN MONTGOMERY, which caused him to be incarcerated for approximately 24 hours.

43) Defendants P.O. ZAHOOOR and P.O. “JD” knew or should have known that the charges were false and his incarceration unjustified.

44) That as approximate result of the aforesaid acts and omissions by the Defendants, the Plaintiff has suffered general, pecuniary and compensatory damages.

AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
“EMOTIONAL DISTRESS”

45) That the Plaintiffs repeat and re-allege the allegations contained in paragraphs “1” through “44” of the complaint with the same force and effect as if fully set forth herein.

46) That the aforesaid actions of the individual Defendants constitute intentional infliction of emotional distress on the Plaintiffs under the laws of the City, State of New York, as a result of the incarceration and prosecution of Plaintiffs DAMEN MONTGOMERY sustained serious emotional injuries.

47) That as a Proximate result of the aforesaid acts and omissions by the Defendants; the Plaintiffs have suffered both general and pecuniary damages and severe emotional distress.

AS FOR A SEVENTH CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
ASSAULT AND BATTERY

48) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “1” through “47” of the complaint with the same force and effect as if fully set forth herein.

49) That the conduct of Defendants P.O. ZAHOOR and P.O. “J D” complained of in this complaint specifically, the assault by, P.O. ZAHOOR and P.O. “J D” were of the nature of extreme and outrageous conduct beyond all bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community, specifically P.O. ZAHOOR and P.O. “J D” on April 27, 2013 at approximately 12:00am am in the vicinity of West 125th Street and Fifth Avenue, New York, New York assaulted the plaintiff by throwing him to the ground and subsequently kneeling him in the back and twisting his shoulders and wrist causing pain and injury; and that the assault was of an intentional nature.

50) Defendants P.O. ZAHOOR and P.O. “JD” knew or should have known that the assault and battery of the plaintiff was unjustified.

51) That as a result of this intentional conduct, the injuries suffered by plaintiff were a proximate result of this conduct, and the Plaintiff by reason of this assault has suffered severe physical injury, humiliation, embarrassment, fear and anxiety.

AS FOR A EIGHTH CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK

52) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “1” through “51” of the complaint with the same force and effect as if fully set forth herein.

53) That as the employer of the individual Defendants, P.O. ZAHOOR and P.O. “JD” at the times of their negligent conduct as set forth herein, the Defendant, CITY OF NEW YORK, is liable to the Plaintiff under the laws of the City and State of New York, for allowing said

defendants to act under color of law.

54) That as a proximate result of the aforesaid acts and omissions by the Defendant **CITY** in hiring, training and employing the individual defendants, the Plaintiff has suffered general and pecuniary damages.

WHEREFORE, Plaintiff requests judgment against individual Defendant, P.O. ZAHOOOR, P.O. "JD", NYPD and Defendant, CITY OF NEW YORK, as follows:

1. As against the individual Defendants, general and Compensatory damages in the sum of TEN MILLION DOLLARS (10,000,000.00) on the Third, Fourth, Fifth, Sixth, and Seventh causes of action,

2. As against the individual defendants, punitive damages in the sum of TEN MILLION DOLLARS (10,000,000.00) each on the First, Second, Third, Fourth, Fifth, Sixth, and Seventh causes of action, and

3. As against Defendant, CITY OF NEW YORK, General and Compensatory damages in the sum of TEN MILLION (10,000,000.00) on the first, third and eighth causes of action asserted against it, and

4. As against Defendant, NYPD, General and Compensatory damages in the sum of TEN MILLION (10,000,000.00) on the second ,third , fourth, fifth, sixth and seventh causes of action asserted against it, and

5. The cost of this action and any and all attorney fees associated with this action,

6. and such other and further relief as may be just and proper.

Dated: July 1, 2014

Brooklyn, New York

Lonnie Hart, Jr., P.C.
by: LONNIE HART, JR., ESQ.
26 Court Street, Suite 714
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(718) 246-8200

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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DAMEN MONTGOMERY

Plaintiff,

Index No.: _____

-against-

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
NEW YORK CITY POLICE OFFICER IMRAN ZAHOOOR
and NEW YORK CITY POLICE OFFICER "JOHN DOE",

Defendants.

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SUMMONS AND COMPLAINT

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LAW OFFICES OF LONNIE HART JR. PC
Attorneys for Plaintiff
26 Court Street, Suite 714
Brooklyn, New York 11242
(718) 246-8200

To: New York Corporation Counsel
100 Church Street, 4th Floor
New York, New York 10007

Attorney for:

Service of a copy of the within

is hereby admitted.

Dated: Brooklyn, New York
July 1, 2014

Lonnie Hart, Jr, Esq.
Attorney for Plaintiffs